

照片投稿授权协议

Photo Submission License Agreement

Version: 1.0 Effective Date: 2026.10.1

1. Parties

- **Licensor :(Contributor)**
- **Contact:** (Email records)
- **Licensee (Website Operator):** Li Zhongyu
- **Website:** <https://lizhongyu-space.github.io>

2. Identification of the Licensed Work

- (a) Each photograph submitted by the Contributor to the Licensee via email or other submission channels, upon confirmation of receipt by the Licensee, shall constitute the "Licensed Work" under this Agreement.
- (b) The act of submitting photographs by the Contributor itself indicates agreement to all terms of this Agreement.
- (c) The specific content of the Licensed Work shall be determined by the photographs actually submitted by the Contributor and confirmed as received by the Licensee.

3. Representations and Warranties

The Contributor represents and warrants that:

- (a) The Contributor is the **copyright owner of the Licensed Work or has obtained lawful authorization from the copyright owner**, and has the right to enter into this Agreement and grant the license herein;
- (b) The Licensed Work is an **original creation** by the Contributor and does not infringe upon the copyright, portrait rights, reputation, privacy, or any other lawful rights of any third party;
- (c) If the Licensed Work contains identifiable **images of third-party individuals**, the Contributor warrants that explicit consent for public display has been obtained from such individuals;
- (d) The Licensed Work does not contain any **illegal, pornographic, violent, or discriminatory** content, and does not violate the laws or regulations of the Contributor's jurisdiction.

4. Scope of License

- (a) **Grant of Rights:** The Contributor grants the Licensee a **non-exclusive, royalty-free, non-transferable** copyright license to use the Licensed Work for display purposes only, including:
1. **Reproduction Right:** to digitally reproduce and store the Licensed Work;
 2. **Right of Communication through Information Networks:** to upload the Licensed Work to the above Website, making it accessible to the public at a time and place individually chosen by them.

(b) **Restrictions:** The Licensee shall not:

1. Use the Licensed Work for any **commercial purpose** (including but not limited to advertising, sales, or commercial promotion);
2. Make **substantive modifications** to the Licensed Work (including but not limited to cropping, color adjustment, or adding watermarks or text), except for **proportional scaling and format conversion** necessary for web display;
3. **Sublicense** the Licensed Work to any third party;
4. Use the Licensed Work on any platform or medium other than the Website.

(c) **Territory:** Worldwide (as the Website is accessible globally via the Internet).

(d) **Attribution:** The Licensee shall, in a reasonable manner, credit the Contributor by name/nickname when displaying the Licensed Work. If the Contributor does not wish to be credited, this should be expressly stated at the time of submission.

5. Term and Withdrawal

(a) This Agreement takes effect upon the Contributor's submission of the Licensed Work.

(b) The Contributor has the right to **withdraw consent at any time by written notice** to the Licensee. The withdrawal notice shall be sent to the Licensee's designated contact email.

(c) Upon receipt of the withdrawal notice, the Licensee shall remove the Licensed Work from the Website **within a reasonable period (not exceeding 15 business days)**. In the event of delays due to technical reasons (such as caching or search engine snapshots), the Licensee shall make reasonable efforts to address the matter promptly.

(d) Withdrawal of consent **shall not affect** the validity of any lawful use made by the Licensee prior to withdrawal.

6. Personal Data Protection

(a) The Licensee collects only the Contributor's **name/nickname and email address** for the following purposes: to confirm authorization, to contact the Contributor when necessary, and to process withdrawal requests.

(b) The Licensee **shall not** sell, rent, or share the Contributor's personal data with any third party, except as required by law.

(c) The Contributor has the right to request **access to, correction of, or deletion of** their personal data. The Licensee shall process such requests within 15 business days.

(d) If the Contributor is located in the **European Economic Area (EEA)**, the Contributor has the following rights under the General Data Protection Regulation (GDPR): Right of Access (Article 15), Right to Rectification (Article 16), Right to Erasure/Right to be Forgotten (Article 17), Right to Restriction of Processing (Article 18), Right to Data Portability (Article 20), and Right to Object (Article 21). The Contributor may exercise these rights through the contact details above.

(e) If the Contributor is located in **Mainland China**, the Licensee processes the Contributor's personal data in accordance with the Personal Information Protection Law of the People's Republic of China, and the Contributor has the right to access, copy, rectify, and delete their personal data.

7. Disclaimer and Limitation of Liability

(a) The Contributor warrants that they have lawful title to the copyright and related rights in the Licensed Work. If any claim, action, or loss arises against the Licensee due to infringement of third-party rights by the Licensed Work, the Contributor shall bear corresponding liability.

(b) The Licensee shall not be liable for any interruption of display or data loss caused by **circumstances beyond the Licensee's reasonable control**, including technical failures, network disruptions, or changes in third-party platform policies.

(c) The display of the Licensed Work by the Licensee **does not constitute any denial or challenge to the Contributor's copyright ownership**.

8. Governing Law and Dispute Resolution

(a) The formation, validity, interpretation, performance, and dispute resolution of this Agreement shall be governed by the **laws of the People's Republic of China**.

(b) Any dispute arising from or in connection with this Agreement shall first be resolved through **friendly negotiation**. If negotiation fails, either party may bring an action before the competent people's court in the place where the Licensee is located.

(c) If the **mandatory laws** of the Contributor's jurisdiction (including but not limited to consumer protection laws and data protection laws) confer rights upon the Contributor that are more favorable than the terms of this Agreement, such mandatory provisions shall prevail.

9. Miscellaneous

(a) This Agreement constitutes the **entire agreement** between the parties regarding the display of the Licensed Work and supersedes any prior oral or written agreements.

(b) If any provision of this Agreement is held to be invalid or unenforceable, the validity of the remaining provisions shall not be affected.

(c) The Licensee reserves the right to **amend this Agreement** in response to changes in laws or website operational needs. The amended version will be published on the Website. Continued use of the submission service after publication of the amended version constitutes acceptance of the amended Agreement.

Contributor's Confirmation: I have read and understood all the above terms and voluntarily enter into this Agreement.

Execution

The Contributor executes this Agreement by submitting photographs via email or other submission channels and expressly indicating agreement to this Agreement (e.g., by stating "I agree to all terms of the Photo Submission License Agreement" in the email, or by checking the consent checkbox on the submission page). The Licensee shall retain such email or checkbox record as evidence of authorization.

协议版本：2.0 生效日期：2026年10月1日

- 许可方（投稿者）
- 联系方式：（电子邮件记录）

- 被许可方（网站运营者）：Li Zhongyu
- 网站地址：<https://lizhongyu-space.github.io>

第二条 授权作品的特定化

- （一）投稿者通过电子邮件或其他投稿渠道向被许可方提交的每一张照片，经被许可方确认接收后，即构成本协议项下的“授权作品”。
- （二）投稿者提交照片的行为本身，即表明其同意本协议全部条款。
- （三）授权作品的具体内容，以投稿者实际提交并经被许可方确认接收的照片为准。

第三条 权利声明与保证

投稿者声明并保证：

- （一）投稿者是授权作品的著作权人或已获得著作权人的合法授权，有权签署本协议并授予本协议项下的许可；
- （二）授权作品为投稿者独立创作完成，不侵犯任何第三方的著作权、肖像权、名誉权、隐私权或其他合法权益；
- （三）如授权作品中包含可识别的第三方人物肖像，投稿者保证已获得该人物对照片进行公开展示的明确同意；
- （四）授权作品不包含任何违法、色情、暴力、歧视性内容，不违反投稿者所在国家或地区的法律法规。

第四条 授权范围

- （一）授权权利：投稿者授予被许可方非排他性的、免费的、不可转让的著作权许可，允许被许可方以展示为目的，对授权作品进行以下使用：
1. 复制权：将授权作品以数字化方式复制、存储；
 2. 信息网络传播权：将授权作品上传至上述网站，使公众可以在其个人选定的时间和地点浏览。
- （二）使用限制：被许可方不得：
1. 将授权作品用于任何商业目的（包括但不限于广告、销售、商业推广）；
 2. 对授权作品进行实质性修改（包括但不限于裁剪、调色、添加水印或文字），但为适应网页展示需要的等比缩放和格式转换除外；
 3. 将授权作品转授权给任何第三方使用；
 4. 在网站以外的任何平台或媒介使用授权作品。
- （三）授权地域：全球范围（因网站通过互联网向全球用户开放）。
- （四）署名：被许可方展示授权作品时，应以合理方式注明投稿者姓名/昵称。如投稿者不希望署名，应在提交时明确说明。

第五条 授权期限与撤回

- （一）本协议自投稿者提交授权作品之日起生效。

（二）投稿者有权随时以书面方式通知被许可方撤回授权。撤回通知应发送至被许可方指定的联系邮箱。

（三）被许可方在收到撤回通知后，应在合理期限内（不超过15个工作日）将授权作品从网站上移除。因技术原因（如缓存、搜索引擎快照）导致的延迟，被许可方应尽合理努力尽快处理。

（四）授权撤回不影响撤回前被许可方已基于本协议进行的合法使用行为的效力。

第六条 个人信息保护

（一）被许可方仅收集投稿者的姓名/昵称和电子邮件地址，用于以下目的：确认授权、在必要时联系投稿者、处理授权撤回请求。

（二）被许可方不会将投稿者的个人信息出售、出租或分享给任何第三方，法律法规另有规定的除外。

（三）投稿者有权要求被许可方查阅、更正或删除其个人信息。被许可方应在收到请求后15个工作日内予以处理。

（四）如投稿者位于欧洲经济区（EEA），投稿者依据《通用数据保护条例》（GDPR）享有以下权利：访问权（第15条）、更正权（第16条）、删除权/被遗忘权（第17条）、限制处理权（第18条）、数据可携带权（第20条）、反对权（第21条）。投稿者可通过上述联系方式行使上述权利。

（五）如投稿者位于中国境内，被许可方依据《中华人民共和国个人信息保护法》处理投稿者的个人信息，投稿者享有查阅、复制、更正、删除其个人信息的权利。

第七条 免责与责任限制

（一）投稿者保证其对授权作品的著作权及其他相关权利享有合法权源。如因授权作品侵犯第三方合法权益而导致被许可方遭受任何索赔、诉讼或损失，投稿者应承担相应责任。

（二）被许可方对授权作品在展示过程中因技术故障、网络中断、第三方平台政策变更等不可归责于被许可方的原因导致的展示中断或数据丢失，不承担责任。

（三）被许可方展示授权作品的行为不构成对投稿者著作权归属的任何否定或挑战。

第八条 适用法律与争议解决

（一）本协议的订立、效力、解释、履行及争议解决，适用中华人民共和国法律。

（二）因本协议引起的或与本协议有关的任何争议，双方应首先通过友好协商解决。协商不成的，任何一方均可向被许可方所在地有管辖权的人民法院提起诉讼。

（三）如投稿者所在国家或地区的强制性法律（包括但不限于消费者保护法、数据保护法）赋予投稿者优于本协议条款的权利，该等强制性法律规定优先适用。

第九条 其他

（一）本协议构成双方就授权作品展示事宜的完整约定，取代此前任何口头或书面的相关约定。

（二）本协议任何条款被认定为无效或不可执行的，不影响其余条款的效力。

（三）被许可方有权根据法律法规变化或网站运营需要修订本协议，修订版本将在网站上公布。投稿者在修订版本公布后继续使用投稿服务的，视为接受修订后的协议。

投稿者确认：我已阅读并理解上述全部条款，自愿签署本协议。

签署方式

投稿者通过电子邮件或其他投稿渠道提交照片，并明确表示同意本协议（在投稿页面勾选同意复选框），即视为签署本协议。被许可方应保存该邮件或勾选记录作为授权凭证。